

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

NOTICE OF PRESERVATION OF UNREBUTTED MATERIAL FACTS

***AND CLARIFICATION OF FINANCIAL REALITY AND INVERSION OF
RESPONSIBILITY***

Defendant Marc Moszkowski, appearing pro se, respectfully submits this Notice not as new evidence but as a formal consolidation of facts already in the record, continuously presented since 2018 across 2,800 pages of filings and exhibits submitted on this docket.

These facts have:

- Never been denied by Plaintiffs;
- Never been addressed by the Court;

- And now require preservation for appellate review, as their continued omission undermines both factual adjudication and judicial accountability.

This submission is offered to eliminate any possible ambiguity regarding what the Court knew, and when. Its contents reflect financial, contractual, and procedural realities that bear directly on both liability and relief.

DECLARATION

1. As a condition to my 2005 H1-B visa to the United States, Plaintiff's Chairman Rustin Howard submitted a signed commitment to the U.S. Department of Homeland Security, confirming that I would receive an annual salary of \$120,000 and personally guaranteeing that salary with his own real estate assets.
2. Despite this solemn commitment, I received no salary whatsoever for three years, and instead personally funded company operations during that time—approximately \$150,000 out of pocket. By the time of DeepGulf's first Timorese contract, DeepGulf owed me a total of \$510,000 in unpaid salary and reimbursement.

3. In 2007, upon the death of the last surviving member of my family, I was required to pay **French inheritance taxes** to retain ownership of my family home. **At this critical time**, one of the Timorese partners in Toke Oil and Gas S.A. voluntarily offered a transfer of \$345,000 from his share of earnings. **This payment, crucially, was not from DeepGulf, not owed to DeepGulf, and was provided solely by a third party** to prevent the government seizure of my home.
4. In 2013, Mr. Howard converted a \$50,000 portion of my salary into a high-interest 'loan' at 17%, calling it an accounting gimmick—structured jointly with a confederate to whom he either owed money or from whom he expected repayment. I was repeatedly assured it was meaningless and strictly between the two individuals. Starting only a month later I assigned to DeepGulf, precisely to provide for my salary, in excess of \$100,000 of my own private consulting missions for a French oil and gas concern. However, four and a half years later, that same confederate suddenly sued me in France on the basis of the gimmick and obtained a default judgment, despite having been previously defeated, when I could not afford a lawyer for the second round. As a result, my bank account is now seized and my home is being auctioned.

5. Had the Timorese partner not transferred the \$345,000 to me, he would have retained it himself. He would not have given it to DeepGulf, which—despite being entitled to only 33.33% of the equity—had already received 50.3% of all cash flow, slightly more than per agreement (10%—5%—5% of major subcontractors' invoicing). The money was never owed to DeepGulf and never came from them. Indeed, the Court has already rejected Plaintiffs' claim for \$959,764.22 in payments made to the Timorese shareholders—effectively recognizing those funds as properly theirs. The \$345,000 at issue here came from the exact same stream of 49.7% of earnings. Accordingly, if any return of the \$345,000 were hypothetically required, it would be owed to the Timorese shareholder who advanced it—not to DeepGulf, which has no valid claim to that share, as this Court itself has already ruled. To reject one and sustain the other reflects either a misunderstanding of the financial structure or a deliberate refusal to apply it consistently.

6. As of this date, DeepGulf still owes me:

- \$510,000 in unpaid H1-B contractual salary and reimbursements for the years 2005 through 2007, inclusive;

- \$528,000 in unpaid H1-B contractual salary over 4 years from 2013 to 2016 inclusive, at \$132,000/year;
- \$90,000 in legal representation costs in federal court, as per the company own Bylaws;
- \$140,000 lost through the fraudulent French judgment;
- Total amount owed: \$1,268,000, exclusive of interest;
- Of which \$888,000 are salaries and \$380,000 due reimbursements.

7. Despite this, Plaintiffs demand, clearly beyond the Statute of Limitations period, \$345,000 that was never theirs, and which was in fact transferred to me because DeepGulf failed to fulfill its duties. That money neither originated from, nor was contractually due to, DeepGulf, and the Court formally acknowledged the fact when it rejected Plaintiffs' claim for the balance of the earnings paid to the Timorese owners.

8. In summary:

- **DeepGulf owes me at least \$1.268 million** under sworn commitments and proven expenditures;
- **I owe DeepGulf nothing;**

- **Plaintiffs now claim** I must repay money **that never passed through them** and **never belonged to them**;
- And this Court has thus far treated Plaintiffs' silence as truth while **ignoring my documentary evidence**.

9. There is no factual, legal, or equitable rationale by which this can be justified—unless the Court is prepared to suppress not only the arithmetic, but the government filings, sworn guarantees, and 2,800 pages of record evidence already submitted.

This Notice is submitted to **preserve the integrity** of the factual record and **ensure** the proper **inclusion** of dispositive evidence, preventing its retroactive omission.

Respectfully submitted this 14th day of July, 2025.

Marc Moszkowski

Pro Se Defendant

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 14th day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Maczkowski